

BEFORE THE PROCUREMENT REVIEW COMMITTEE
BALUCHISTAN PUBLIC PROCUREMENT REGULATORY AUTHORITY,
QUETTA

PRC APPEAL No.15/2025

Quorum:

1. Habib ur Rehman Jamot.....MD BPPRA / Chairman
2. Mubashir Ali Khan (FCIPS).....Procurement Specialist (Goods & Services) BPPRA / Member
3. Junaid Shah.....Procurement Specialist (Works) BPPRA /Member
4. Iftikhar Ahmed Mir.....Retd. Chief Engineer /Technical Member
5. Abdul Hayee Baloch.....Advocate /Private Member

M/S Mir Ali Khalil Construction Company

..... **APPELLANT**

VERSUS

1. Secretary, Government of Baluchistan, Local Government & Rural Development Department.
2. Director Technical/ Chairman Complaint Redressal Committee, Local Government & Rural Development Department.
3. Chief Officer, Municipal Committee, Zhob

..... **RESPONDENTS**

APPEAL UNDER RULE 56-A AGAINST THE TSE NO 252607790933

For the Appellant:

Mr. Hakeem Khan Advocate, Counsel for Appellant

For the Respondents:

Mujeebullah, Assistant Engineer, Local Government & Rural Development Department, Zhob.

Decision Date: 21st October 2025

1. Procedural History and Withdrawal of Appeal

1.1. This Appeal was filed under Rule 56-A of the relevant Public Procurement Rules (BPP Rules) by M/S Mir Ali Khalil Construction Company ("the Appellant") challenging its disqualification for being marked "absent" in Tender No. TSE-252607790933 ("the subject Tender").

1.2. During the pendency of these proceedings, and after several hearings, the Appellant filed an application under Section 16(1) of the Procurement Review Committee Regulations, seeking unconditional withdrawal of the Appeal.

1.3. Having heard the Appellant's counsel, Mr. Hakeem Khan Advocate, and considering the provisions of Section 16(2) of the Regulations, this Committee allowed the withdrawal application. However, given the stage of the proceedings and the resources expended, this Committee deemed it fit to impose costs on the Appellant. Consequently, via our Short Order dated 17th October 2025, the Appeal was dismissed as withdrawn with costs of Rs. 30,000/- to be paid by the Appellant.

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1.4. This Final Judgment now records the reasons for that order and makes observations on the conduct of the Procuring Agency to prevent future irregularities.

2. Factual Background and Findings

2.1. The Appellant, a duly registered contractor, submitted bids for 13 out of 14 works advertised by the Chief Officer, Municipal Committee, Zhob ("the Procuring Agency"). The Procuring Agency declared the Appellant "absent" for the subject Tender and 11 others, admitting his presence for only two.

2.2. The Appellant's initial challenge before the Complaint Review Committee (CRC) was not decided within the statutory timeframe prescribed under BPP Rule 56, compelling him to approach this Forum.

2.3. During proceedings, the Procuring Agency (represented by Respondent No. 3, Mr. Mujeebullah, Assistant Engineer) submitted crucial documents which revealed significant procedural flaws:

a) **Contradictory Records:** The Agency maintained a manual attendance sheet showing the Appellant as present, while the Electronic Procurement System (EPPS) reflected him as absent. This fundamental inconsistency vitiates the transparency and reliability of the bid opening process.

b) **Consolidated and Confusing List:** The Procuring Agency prepared a consolidated attendance sheet listing bids beyond those in the original Notice Inviting Tender (NIT), creating unnecessary confusion and directly leading to the error in marking the Appellant absent.

c) **Violation of Circular:** The Agency admitted to opening 47 tenders simultaneously, in blatant violation of a circular issued by the Authority which explicitly mandates that not more than 10 bids shall be opened on the same day. This practice undermines the integrity and careful consideration required in public procurement.

2.4. It also transpired that the CRC, which had initially failed to decide, eventually dismissed the Appellant's complaint on 22-09-2025. The work, though not formally awarded, was intended for Respondent No. 4, Sheikh Umer Shah & Brothers, who was present as the lowest evaluated bidder.

3. Observations and Directions

3.1. While the Appellant's withdrawal has rendered the main challenge infructuous, this Committee is duty-bound to comment on the egregious procedural violations committed by the Procuring Agency, which appear to be a recurring issue within the Local Government and Rural Development Department.

3.2. The act of the Procuring Agency in creating contradictory records (manual vs. digital) and using a non-standardized attendance list is declared **illegal, arbitrary, and contrary to the principles of transparency, fairness, and equality** enshrined in the Public Procurement Rules.

3.3. The practice of opening an excessive number of tenders (47) in a single session is condemned in the strongest terms. It is a recipe for error, as this case demonstrates, and shows a blatant disregard for established guidelines designed to ensure a fair process.

4. Order

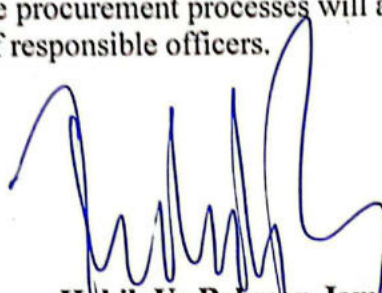
For the reasons stated above, it is hereby ordered:

1. The Appeal is dismissed as withdrawn, pursuant to the Appellant's application and our Short Order dated 17-10-2025.

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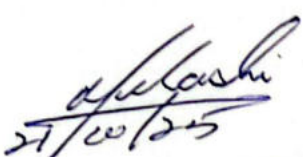
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2. The Appellant shall pay costs of Rs. 30,000/- to the Procurement Review Committee for the time and resources consumed by these proceedings before their withdrawal.
3. A copy of this judgment shall be sent to the Secretary, Local Government & Rural Development Department, with a strict direction to:
 - a) Issue a circular to all subordinate procuring agencies reiterating the mandatory limit on the number of bids that can be opened in a single day.
 - b) Ensure strict compliance with standardized record-keeping practices, eliminating discrepancies between manual and digital record.
 - c) Take disciplinary action against officials responsible for such repeated procedural lapses to ensure future compliance.
4. The Procuring Agency, Municipal Committee Zhob, is hereby warned that a repetition of such violations in future procurement processes will attract severe penalties, including the potential blacklisting of responsible officers.

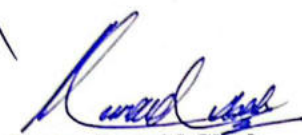

Habib Ur Rehman Jamot

Chairman
Government of Balochistan
Public Procurement Review Committee
(B-PPRA)

10/10/2025


Mubashir Ali Khan (FCIPS)

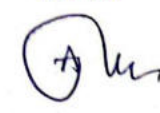
Member
Procurement Review Committee
BPPRA


Engr. Junaid Shah

Member
Procurement Review Committee
BPPRA


Iftikhar Ahmed Mir

Member
Procurement Review Committee
BPPRA


Abdul Hayee Baloch, Advocate

Member
Procurement Review Committee
BPPRA